

File No.: EXP202311381

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: THE BOECILLO CITY COUNCIL (hereinafter, the complaining party) filed a complaint with the Spanish Agency for Data Protection on August 16, 2023. The complaint is directed against GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA with NIF B04859575 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complaining party states that after inquiring about the first commercial email received from the complained party (dated 2/6/2022), they received others but requested not to receive more; nevertheless, they continued to receive them.

Along with the complaint, a copy of the emails received from ***EMAIL.1 on the dates 02/6/2022 (to the address alcaldia@boecillo.es), 17/1/2023 (to the address informatica@boecillo.es), 6/4/2023 (to the address informatica@boecillo.es), and 15/8/2023 (to the address informatica@boecillo.es) is provided. It also includes copies of the opposition requests sent on the dates 17/1/2023 (addressed to ***EMAIL.1) and 10/4/2023 (addressed to ***EMAIL.2). The details of these emails are reproduced in the Proven Facts First to Seventh.

The sent emails are signed by A.A.A. and B.B.B. and include the following information:

La Casa Azul

***ADDRESS.1

***PHONE.1 ***EMAIL.1 ***PHONE.2

SECOND: Upon receiving the complaint, the AEPD conducted various verifications. Among them, a search on the Internet using the Google search engine, the results of which are noted in Proven Fact Eighth.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned twice due to incorrect address; an attempt was made for electronic notification, which also expired; the forwarding of the complaint was reiterated by certified postal mail, and notification was made on October 25, 2023.

No response has been received to this forwarding letter.

FOURTH: On November 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

FIFTH: On February 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), in order to impose an administrative fine of €2,000 for the alleged infringement of Article 21.1 of the LSSI, classified in Article 38.4.d) of the LSSI.

The initiation agreement, which was notified to the complained party in accordance with the rules established in the LPACAP, was received on 15/02/2024, as stated in the acknowledgment of receipt in the file.

SIXTH: After notifying the aforementioned initiation agreement on 15/02/24, in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party. Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: On June 2, 2022, the complained party sent a first communication from the address La Casa Azul (PcRenting) ***EMAIL.1 to the email address of the complaining party (alcaldia@boecillo.es) in which it states the following:

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"Subject: Liquidation of computers withdrawn from the administration.

Good afternoon:

Our company in Almería has withdrawn in several batches more than 2000 computers from the administration, and they have commissioned us to liquidate them for 45 euros each.

These devices have been reviewed, formatted, memory upgraded, and Windows 10 has been installed with an indefinite license.

They are perfect computers for office work, administrative tasks, teleworking, online training, and browsing the internet. If you wish, you can request detailed information without obligation by replying to this same email.

We hope this information has been of interest to you, and we send you our best regards.

A.A.A.

La Casa Azul ***ADDRESS.1

***PHONE.1 ***EMAIL.1 ***PHONE.2

SECOND: On June 7, 2022, the claimant expressed interest in the communication received by sending an email from the address informatica@boecillo.es to the address ***EMAIL.1 stating the following:

"I am forwarding your email from the mayor's office and I would like to request more information about the sale of these PCs."

THIRD: On January 17, 2023, the respondent sent a new commercial communication from the address La Casa Azul (PcRenting) (***EMAIL.1) to the claimant's email informatica@boecillo.es, stating the following:

"Good morning:

A few months ago, you expressed interest in some computers that we withdrew from the administration. We are now withdrawing laptops. Our company has withdrawn in several batches more than 3000 Lenovo Yoga laptops from the administration, and they have commissioned us to liquidate them for only 110 euros each.

These devices have been reviewed, formatted, and Windows 10 Pro has been installed with an indefinite license. They are perfect laptops for office work, administrative tasks, teleworking, online training, and browsing the internet. If you wish, you can request detailed information by replying to this

email.

We hope this information has been of interest to you, and we send you our best regards.

A.A.A.

La Casa Azul

***ADDRESS.1

***PHONE.1 ***EMAIL.1 ***PHONE.2"

FOURTH: On January 17, 2023, the claimant from the IT department of the Boecillo City Council opposed the sending of communications via email sent to the respondent (***EMAIL.1), indicating the following:

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"Good morning.

Thank you for the information, but we kindly ask you to remove us from your mailing lists [...]

FIFTH: On April 6, 2023, the respondent sent a new commercial communication from the address Casa Azul (PcRenting) ***EMAIL.1 to the claimant's email informatica@boecillo.es, in which it states the following:

"Good morning:

Recently, you requested information about some desktop computers that have been withdrawn from the administration... we were liquidating them for only 45 euros... and although somewhat low in performance, they served their purpose.

We are sending this email to inform you that we have withdrawn from a lease-end some much more modern and powerful devices: HP EliteDesk 800 G2 SFF Intel Core i5-6500 CPU 3.20GHz, 8 Gb Ram, 256 SSD, Windows 10 Pro.

We are liquidating them for only 165 euros plus VAT.

If you are interested in one or more units, you would need to reply to this email indicating the billing details, the delivery address (if different from the billing address), and a contact phone number. The order would be sent via GLS and can be paid by bank transfer or cash on delivery.

We hope this information has been of interest to you, and we send you our best regards."

A.A.A.

La Casa Azul

***ADDRESS.1

***PHONE.1 ***EMAIL.1 ***PHONE.2"

SIXTH: On April 10, 2023, the claimant from the IT department of the City Council opposed again, sending an email to the respondent ***EMAIL.2 (Casa Azul - PcRenting), in which they indicate the following:

"Good morning.

This is the second email we are sending from this City Council requesting that you remove us from your information mailing list. If you do not remove all email addresses sent to any "@boecillo.es" address from your list, we will proceed to the next step and take appropriate measures."

SEVENTH: On August 15, 2023, the respondent sent a new commercial communication from the address PC Renting - Casa Azul ***EMAIL.1 to the claimant's email informatica@boecillo.es, in which it states the following:

"Good morning:

Recently, you requested information about desktop computers that have been withdrawn from the administration. Are you still looking for a computer?

Right now, we are withdrawing some Lenovo M93P computers with much better specifications, which are in impeccable condition and come from a multinational that has..."

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rented. This concerns Lenovo ThinkCenter M93P Core i5-4570 computers
3.20 GHz, 8 Gb Ram, 500 Gb HDD, Windows 10 pro, with Samsung 20"
model 204BM monitor, keyboard, and mouse.

Would you like us to send you more information about these computers?

Best regards.

B.B.B.

La Casa Azul ***ADDRESS.

***PHONE.1 ***EMAIL.1 ***PHONE.2”

EIGHTH: On 23/08/2023, the Inspection Subdirectorate conducted a search using
Google with the criteria “B.B.B. La Casa Azul PC Renting Cuevas de Almanzora.”

Among the results, a complaint filed through the OCU organization against “Gestión de Patrimonios
Anfípolis, S.L. (La Casa Azul)” is displayed. Several messages exchanged between the complainant
and the mentioned entity are included. The messages sent by the entity are signed by “C.C.C..
Post-Sales Department – PC Renting – La Casa Azul” and by “B.B.B.”. The data included in these
messages regarding Gestión de Patrimonios Anfípolis, S.L. are as follows:

C.C.C.

Post-Sales Department – PC Renting – La Casa Azul

***ADDRESS.1

Tel: Whatsapp, Telegram ***PHONE.3 postventa. (...)@gmail.com

B.B.B.

La Casa Azul

***ADDRESS.1

Tel: ***PHONE.1 ***EMAIL.1

***PHONE.2

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services
and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of
Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights
(hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate
and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish
Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, this organic
law, the regulatory provisions issued for its development, and, as long as they do not contradict them,
subsidiarily by the general rules on administrative procedures.”

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Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the
Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its
development regulations shall apply to the procedures that the Spanish Data Protection Agency must
process in exercising the competencies attributed to it by other laws."

II

Allegations to the initiation agreement

No allegations have been received from the complained party.

III

Prohibition of commercial communications made via email or equivalent electronic communication means

Currently, all types of unsolicited communication made electronically are referred to as “spam.” Thus, “spam” is understood to mean any unsolicited message that typically aims to offer, market, or try to awaken interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers regarding the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. The LSSI, in its Article 21.1, expressly prohibits “the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients.”

That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity are prohibited without the express consent of the recipient, although this prohibition finds its exception in paragraph 2 of the aforementioned Article 21, which authorizes the sending of commercial communications when “there is a prior contractual relationship, provided that the provider has lawfully obtained the contact data of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.”

Thus, the sending of unsolicited commercial communications, outside the exceptional case of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these rules, consent, in addition to being prior,

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specific and unequivocal, must be informed. And this information must be full and accurate regarding the sector of activity from which they may receive advertising, with a warning about the right to deny or withdraw consent. This information thus configured must be taken as a necessary prerequisite to grant validity to the expression of will of the affected party.

IV

Prohibition of unsolicited or expressly authorized commercial communications

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, starting from a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as follows:

“f) ‘Commercial communication’: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the following will not be considered commercial communication: data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, nor communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration.”

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines “Service of the Information Society” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient.

The concept of service of the information society also includes services not remunerated by their recipients, insofar as they constitute an economic activity for the service provider.”

The aforementioned section adds that the sending of commercial communications is a service of the information society, provided that it represents an economic activity.

According to section d) of the aforementioned Annex, a recipient is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.”

From the above, it follows that when the commercial communication does not meet the requirements required by the concept of Services of the Information Society, it loses its character as a commercial communication. In this regard, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communication for the purposes of this Law. On the one hand, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other hand, communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration.

V

Unfulfilled obligation

Title VII of the LSSI under the heading “Infringements and penalties” contains the sanctioning regime applicable in the event that any of the infringements contained in the table of infringements included therein occur.

Specifically, Article 37 specifies that “service providers of the information society are subject to the sanctioning regime established in this Title when this Law is applicable to them.”

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person who provides a service of the information society.”

In this case, the complaining party claimed for the sending of unwanted commercial communications to different email addresses of the City Council, despite not having given their consent, nor being a prior contractual relationship, and after opposing the sending of the same.

They stated that they received a first commercial communication on June 2, 2022, and after inquiring about it, received another on September 17, 2022, and on January 17, 2023, requesting on the same January 17, 2023, not to receive any more communications; despite this, on April 6, 2023, they received another communication, for which they reiterated their opposition on April 10 and again received communication on August 15, 2023. These facts are evidenced by the emails provided.

VI

Classification of the infringement

In accordance with the evidence available at this moment of the proposal for resolution of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the complained party has committed an infringement for sending unwanted commercial communications, despite not having given their consent, nor being a prior contractual relationship, and after the complaining party opposed the sending of the same on two occasions.

The known facts constitute an infringement, attributable to the complained party, for violation of Article 21.1 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means is prohibited.”

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previously not having been requested or expressly authorized by the recipients thereof.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact data of the recipient and uses it to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data

for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.

VII

Qualification of the infringement

In accordance with the provisions of Article 38, in its sections 3 and 4 of the LSSI, the following are considered serious and minor infringements:

“3. Serious infringements are:

c) The mass sending of commercial communications by email or other equivalent electronic means, or its persistent or systematic sending to the same recipient of the service when such sends do not comply with the requirements established in Article 21.”

“4. Minor infringements are:

d) The sending of commercial communications by email or other equivalent electronic means when such sends do not comply with the requirements established in Article 21 and do not constitute a serious infringement.”

Consequently, the aforementioned infringement of Article 21 of the LSSI, in the terms indicated by the aforementioned Article 38.4.d), is generally classified as a minor infringement.

VIII

Proposal for sanction

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, with the criteria for its graduation established in Article 40 of the same regulation, which provides as follows:

“The amount of the fines imposed shall be graduated according to the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when this has been declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 21 of the LSSI, allows for the assessment of the fine to be imposed at an amount of €2,000 (two thousand euros).

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been accredited,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA, with NIF B04859575, for an infringement of Article 21.1 of the LSSI, classified in Article 38.4.d) of the LSSI, a fine of €2,000 (two thousand euros).

SECOND: TO NOTIFY this resolution to GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has ended without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the

voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Once the notification is received and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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